EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

SECOND SECTION

DECISION

Application no. 4594/11
Abdullah YALÇIN
against Turkey

The European Court of Human Rights (Second Section), sitting on 25 November 2014 as a Committee composed of:

Paul Lemmens, *President,*
Robert Spano,
Jon Fridrik Kjølbro, *judges,*
and Abel Campos, *Deputy Section Registrar,*

Having regard to the above application lodged on 23 July 2010,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

The applicant, Mr Abdullah Yalçın, is a Turkish national, who was born in 1965 and lives in Adana. He was represented before the Court by Mr M. Özberk, a lawyer practising in Adana.

The Turkish Government ("the Government") were represented by their Agent.

On 4 February 2010 the applicant attended the reading out of a press statement in Adana. Subsequently, the Adana Governorship imposed a fine on the applicant pursuant to Article 32 of Law no. 5326, for disobeying the orders of the authorised bodies to protect public order and safety. The applicant filed an objection against the Adana Governorship's decision which was subsequently dismissed by the Adana Magistrates' Court.

On 10 January 2012 the Court decided to communicate the applicant's complaints concerning the freedom of expression to the Government under Articles 10 and 11 of the Convention. On 21 June 2012 the Government's observations were forwarded to the applicant, who was invited to submit his own observations. No reply was received to the Registry's letter.

By letter dated 18 June 2014, sent by registered post, the applicant's representative was notified that the period allowed for submission of his observations had expired on 2 August 2012 and that no extension of time had been requested. However, no response has been received to that letter. The applicant's representative's attention was drawn to Article 37 § 1 (a) of the Convention, which provides that the Court may strike a case out of its list of cases where the circumstances lead to the conclusion that the applicant does not intend to pursue the application. However, no response has been received to that letter.

THE LAW

The Court considers that, in these circumstances, the applicant may be regarded as no longer wishing to pursue his application, within the meaning of Article 37 § 1 (a) of the Convention. Furthermore, in accordance with Article 37 § 1 *in fine*, the Court finds no special circumstances regarding respect for human rights as defined in the Convention and its Protocols which require the continued examination of the case.

In view of the above, it is appropriate to strike the case out of the list.

For these reasons, the Court, unanimously,

Decides to strike the application out of its list of cases.

Abel Campos
Deputy Registrar

Paul Lemmens
President